

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 249

AN ACT to amend the Indiana Code concerning agriculture and animals.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 15-19-7-0.5 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 0.5. As used in this chapter, "all life stages" means:**

- (1) gestation or lactation;**
- (2) growth; and**
- (3) adult maintenance life stages.**

SECTION 2. IC 15-19-7-2, AS AMENDED BY P.L.99-2012, SECTION 21, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2. (a)** As used in this chapter, "commercial feed" means all materials, or combinations of materials, that are distributed or intended for distribution for use as feed or for mixing in feed, except as exempted in this section. The term does not include the following unless labeled with nutritional claims or adulterated within the meaning of section 29(1) of this chapter:

- (1) Unmixed whole seeds.
- (2) Unmixed, physically altered whole seeds that have not been chemically altered.
- (3) Commodities, compounds, or substances excluded by rules adopted by the state chemist under IC 4-22-2 in accordance with section 34 of this chapter.

(b) Commercial feed does not include the following items when

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ungrounded and not mixed with or intermixed with other materials not considered commercial feed:

- (1) Raw meat.**
- (2) Hay.**
- (3) Straw.**
- (4) Stover.**
- (5) Silages.**
- (6) Cobs.**
- (7) Husks.**
- (8) Hulls.**

(c) Commercial feed does not include individual chemical compounds and substances of loose salt (sodium chloride).

(d) Commercial feed does not include unmanipulated high moisture (greater than ninety percent (90%) moisture) human food processing byproducts.

SECTION 3. IC 15-19-7-6.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6.5. As used in this chapter, "family" means a group of products, which are nutritionally adequate for any or all life stages based on their nutritional similarity to a lead product, that has been successfully test-fed according to an Association of American Feed Control Officials feeding protocol.

SECTION 4. IC 15-19-7-7.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.2. As used in this chapter, "good manufacturing practice" refers to the following:

- (1) The regulations prescribing good manufacturing practices for Type B and Type C medicated feeds as published in 21 CFR 225.**
- (2) The regulations prescribing good manufacturing practices for Type A medicated articles as published in 21 CFR 226.**

SECTION 5. IC 15-19-7-7.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) As used in this chapter, "immediate container" means the:

- (1) unit;**
- (2) can;**
- (3) box;**
- (4) tin;**
- (5) bag; or**
- (6) other receptacle or covering;**

in which a pet food or specialty pet food is displayed for sale to



retail purchasers.

(b) The term does not include containers used as shipping containers.

SECTION 6. IC 15-19-7-7.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 7.7. As used in this chapter, "ingredient statement" refers to a collective and contiguous listing on the label of the ingredients of which the pet food or specialty pet food is composed.**

SECTION 7. IC 15-19-7-16.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16.5. As used in this chapter, "poisonous or deleterious substances" refers to the following:**

(1) Fluorine and any mineral or mineral mixture that is to be used directly for the feeding of domestic animals and in which the fluorine exceeds the following:

(A) Twenty-hundredths percent (0.20%) for breeding and dairy cattle.

(B) Thirty-hundredths percent (0.30%) for slaughter cattle.

(C) Thirty-hundredths percent (0.30%) for sheep.

(D) Forty-five hundredths percent (0.45%) for swine.

(E) Sixty-hundredths percent (0.60%) for poultry.

(2) Fluorine bearing ingredients when used in such amounts that they raise the fluorine content of the total ration (exclusive of roughage) above the following amounts:

(A) Four-thousandths percent (0.004%) for breeding and dairy cattle.

(B) Nine-thousandths percent (0.009%) for slaughter cattle.

(C) Six-thousandths percent (0.006%) for sheep.

(D) One-hundredth percent (0.01%) for lambs.

(E) Fifteen-thousandths percent (0.015%) for swine.

(F) Three-hundredths percent (0.03%) for poultry.

(3) Fluorine bearing ingredients incorporated in any feed that is fed directly to:

(A) cattle;

(B) sheep; or

(C) goats;

consuming roughage (with or without) limited amounts of grain, that results in a daily fluorine intake in excess of fifty (50) milligrams of fluorine per one hundred (100) pounds of body weight.



(4) The following items when extracted with trichlorethylene or other chlorinated solvents:

- (A) soybean meal;**
- (B) flakes;**
- (C) pellets; or**
- (D) other vegetable;**
 - (i) meals;**
 - (ii) flakes, or**
 - (iii) pellets.**

(5) Sulfur dioxide, sulfurous acid, and salts of sulfurous acid when used in or on feeds or feed ingredients that are considered or reported to be a significant source of vitamin B1 (thiamine).

SECTION 8. IC 15-19-7-16.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16.7. As used in this chapter, "principal display panel" refers to the part of a label that is most likely to be displayed, presented, shown, or examined under normal and customary conditions of display for retail sale.**

SECTION 9. IC 15-19-7-19.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 19.5. As used in this chapter, a "supplier" is a person or company that supplies commercial feed:**

- (1) ingredients;**
- (2) supplements; and**
- (3) premixes;**

to an Indiana manufacturer or distributor.

SECTION 10. IC 15-19-7-24, AS AMENDED BY P.L.99-2012, SECTION 31, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 24. (a) A person who manufactures a commercial feed or whose name appears on the label of a commercial feed may not distribute the commercial feed in Indiana without a commercial feed license issued by the state chemist. ~~on a form provided by the state chemist.~~**

(b) An out-of-state distributor may not cause a commercial feed to be distributed in Indiana without a commercial feed license issued by the state chemist on a form provided by the state chemist.

(c) A commercial feed license is issued for a calendar year and expires December 31 of the year for which the license was issued. Commercial feed license fees are as follows:

- (1) The filing fee for a new or renewal license is fifty dollars (\$50).**



(2) A late filing fee of fifty dollars (\$50) shall be added to the license fee if the applicant has distributed feed before filing the license application.

(3) A late filing fee of fifty dollars (\$50) shall be added to the filing fee for renewing a commercial feed license if the application for renewal is received after January 16.

(d) The form and content of commercial feed license applications shall be established by rules adopted by the state chemist under IC 4-22-2, in accordance with section 34 of this chapter.

SECTION 11. IC 15-19-7-24.3 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 24.3. A person applying for a commercial feed license under section 24 of this chapter shall apply using forms provided by the director or forms reproduced locally by the applicant containing the following information:**

(1) Name, complete mailing address, and physical location of the person applying for a commercial feed license.

(2) Telephone number, fax number, and electronic mail address.

(3) A list of subsidiaries located in Indiana or any out of state subsidiaries that distribute directly into Indiana.

(4) A declaration describing whether the person intends to:

(A) manufacture; or

(B) distribute;

commercial feeds under their label in or into Indiana.

(5) A designation whether the person intends to manufacture or distribute pet foods or specialty pet foods in containers:

(A) of ten (10) pounds or less; or

(B) exceeding ten (10) pounds.

(6) A declaration describing where the manufacturer or distributor is located.

(7) If the person is a manufacturer, a declaration describing whether the person only manufactures customer formula feed.

(8) The printed name and title of the contact person for the manufacturer or distributor.

(9) The signature of the person submitting the application.

SECTION 12. IC 15-19-7-24.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 24.5. (a) Manufacturers and distributors located in Indiana who furnish substantial quantities of commercial feeds to customers in other states may apply to the**



director for interstate exclusion status.

(b) The following conditions apply to a manufacturer or distributor with an interstate exclusion status:

- (1) A supplier may not charge a manufacturer or distributor the inspection fee on commercial feeds purchased from a supplier.
- (2) A manufacturer and distributor shall report and pay the inspection fee on all commercial feeds distributed in Indiana each quarter, including commercial feed distributed under another distributor's label.
- (3) A manufacturer and distributor may not claim a credit on the quarterly report for payment of the inspection fee to another distributor.

(c) The state chemist shall maintain a list of manufacturers and distributors designated with an interstate exclusion status.

SECTION 13. IC 15-19-7-25.4 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25.4. (a) Pet food and specialty pet food must be labeled with the following information:

- (1) Product name and brand name, if any, on the principal display panel as described in section 27.5 of this chapter.
- (2) The species of pet or specialty pet for which the food is intended conspicuously designated on the principal display panel.
- (3) Quantity statement on the principal display panel.
- (4) Guaranteed analysis as described in section 29.5 of this chapter.
- (5) Ingredient statement as described in section 25.5 of this chapter.
- (6) A statement of nutritional adequacy or purpose if required under section 25.7 of this chapter.
- (7) Feeding directions if required under section 25.8 of this chapter.
- (8) Name and address of the manufacturer or distributor as described in section 28.2 of this chapter.

(b) When a pet food or specialty pet food enclosed in an outer container or wrapper is intended for retail sale, all required label information must appear on the outer container or wrapper.

(c) A vignette, graphic, or pictorial representation on a pet food or specialty pet food label must not misrepresent the contents of the package.

(d) The use of the word "proven" in connection with a label



claim for a pet food or specialty pet food is not permitted unless the claim is substantiated by scientific or other empirical evidence.

(e) No statement may appear on the label or labeling of a pet food or specialty pet food which makes false or misleading comparisons between that product and any other product.

(f) A personal or commercial endorsement is permitted on a pet food or specialty pet food label if the endorsement is not false or misleading.

(g) A statement on a pet food or specialty pet food label stating "Improved", "New", or a similar designation must be substantiated and limited to not more than six (6) months production.

(h) A statement on a pet food or specialty pet food label stating preference or comparative attribute claims must be substantiated and limited to not more than one (1) year production, after which the claim must be removed or resubstantiated.

SECTION 14. IC 15-19-7-25.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25.5. (a) Each ingredient of a pet food or specialty pet food must be listed in the ingredient statement as follows:

- (1) The names of all ingredients in the ingredient statement must be shown in letters or type of the same size.
- (2) The ingredients must be listed in descending order by their predominance by weight in nonquantitative terms.
- (3) Ingredients must be listed and identified by the name and definition established by Association of American Feed Control Officials.
- (4) Any ingredient for which no name and definition has been established must be identified by the common or usual name of the ingredient.

(b) The ingredients "meat" or "meat byproducts" must be qualified to designate the animal from which the meat or meat byproducts are derived unless the meat or meat byproducts are derived from:

- (1) cattle;
- (2) swine;
- (3) sheep;
- (4) goats; or
- (5) any combination of subdivisions (1) through (4).

For example, ingredients derived from a horse must be listed as "horsemear" or "horsemear byproducts".



(c) A brand or trade name must not be used in the ingredient statement.

(d) A reference to the quality, nature, form, or other attribute of an ingredient on the labeling is allowed if the reference meets the following:

- (1) The designation is not false or misleading.
- (2) The ingredient imparts a distinctive characteristic to the pet food or specialty pet food because it possesses that attribute.

(e) A reference to quality or grade of the ingredient may not appear in the ingredient statement.

SECTION 15. IC 15-19-7-25.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 25.6. (a) An artificial color may be used in a pet food or specialty pet food only if it has been shown to be harmless to pets or specialty pets. The permanent or provisional listing of an artificial color in the United States Food and Drug regulations as safe for use, together with the conditions, limitations, and tolerances, if any, incorporated therein, is satisfactory evidence that the color is, when used under the United States Food and Drug regulations, harmless to pets or specialty pets.**

(b) Evidence may be required to prove the safety and efficacy or utility of a pet food or specialty pet food which contains additives or drugs, when used according to directions furnished on the label. Satisfactory evidence of the safety and efficacy of a pet food or specialty pet food may be established when the pet food or specialty pet food:

- (1) contains the additives, the use of which conforms to the requirements of the applicable regulation in 21 CFR, or are "prior sanctioned" or "Generally Recognized as Safe" for the use; or
- (2) itself is a drug or contains a drug (as defined in section 6 of this chapter) and is "generally recognized as safe and effective" for the labeled use or is marketed subject to an application approved by the federal Food and Drug Administration under 21 U.S.C. 360(b).

(c) When a drug (as defined in IC 15-19-7-6) is included in a pet food or specialty pet food, the format required by section 26.2(a)(2) of this chapter for labeling medicated feeds must be used.

SECTION 16. IC 15-19-7-25.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



[EFFECTIVE JULY 1, 2026]: **Sec. 25.7. (a) The label of a pet food or specialty pet food that is intended for all life stages and sizes of the pet or specialty pet may include an unqualified claim, directly or indirectly, such as "complete and balanced", "perfect", "scientific", or "100% nutritious" if at least one (1) of the following apply:**

(1) The product meets the nutrient requirements for all life stages established by an Association of American Feed Control Officials recognized nutrient profile.

(2) The product meets the criteria for all life stages as substantiated by completion of the appropriate Association of American Feed Control Officials recognized animal feeding protocol.

(3) The product is a member of a product family that is nutritionally similar to a lead product that contains a combination of ingredients that has been fed to a normal animal as the sole source of nourishment in accordance with the testing procedures established by Association of American Feed Control Officials for all life stages, if the following are satisfied:

(A) The nutritional similarity of the family product can be substantiated according to the procedures for establishing pet food product families developed by Association of American Feed Control Officials.

(B) The family product meets the criteria for all life stages.

(C) Under circumstances of reasonable doubt, the state chemist may require the manufacturer to perform additional testing of the family product to substantiate the claim of nutritional adequacy.

(b) The label of a pet food or specialty pet food that is intended for a limited purpose or a specific life stage, but not for all life stages, may include a qualified claim, such as "complete and balanced", "perfect", "scientific", or "100% nutritious" when the product and claim meet all of the following:

(1) The claim is qualified with a statement of the limited purpose or specific life stage for which the product is intended or suitable, for example, "complete and balanced for puppies (or kittens)". The claim and the required qualification must be juxtaposed on the same label panel and in the same size, style, and color print.

(2) The product meets at least one (1) of the following:

(A) The nutrient requirements for the limited purpose or



specific life stage established by an Association of American Feed Control Officials recognized nutrient profile.

(B) The criteria for a limited purpose or a specific life stage as substantiated by completion of the appropriate Association of American Feed Control Officials recognized animal feeding protocol.

(C) The requirements of a product family which is nutritionally similar to a lead product which contains a combination of ingredients that, when fed for such limited purpose, will satisfy the nutrient requirements for the limited purpose and has had its capabilities in this regard demonstrated by adequate testing, and if the following are also met:

(i) The nutritional similarity of the family product can be substantiated according to the procedures for establishing pet food product families developed by Association of American Feed Control Officials.

(ii) The family product meets the criteria for the limited purpose.

(iii) Under circumstances of reasonable doubt, the state chemist may require the manufacturer to perform additional testing for the family product to substantiate the claim of nutritional adequacy.

(c) Dog and cat food labels must include a statement of nutritional adequacy or purpose of the product, except when the dog or cat food is clearly and conspicuously identified on the principal display panel as a "snack" or "treat". The statement must consist of one (1) of the following:

(1) A claim that the dog or cat food meets the requirements of one (1) or more of the recognized categories of nutritional adequacy, gestation or lactation, growth, maintenance, and all life stages. The claim must be stated verbatim as one (1) of the following:

(A) "(Name of product) is formulated to meet the nutritional levels established by the Association of American Feed Control Officials Dog (or Cat) Food Nutrient Profiles for ____." (Blank is to be completed by using the stage or stages of the pet's life, such as gestation, lactation, growth, maintenance, or the words "All Life Stages").

(B) "Animal feeding tests using Association of American



Feed Control Officials procedures substantiate that (Name of Product) provides complete and balanced nutrition for _____. (Blank is to be completed by using the stage or stages of the pet's life tested, such as gestation, lactation, growth, maintenance, or the words "All Life Stages").

(C) "(Name of Product) provides complete and balanced nutrition for _____ (Blank is to be completed by using the stage or stages of the pet's life, such as gestation, lactation, growth, maintenance, or the words "All Life Stages") and is comparable in nutritional adequacy to a product which has been substantiated using Association of American Feed Control Officials feeding tests."

(2) A nutritional or dietary claim for purposes other than those listed in subsection (a) or (b), if the claim is scientifically substantiated.

(3) If a product does not meet the requirements of subsection (a) or (b) or any other special nutritional or dietary need and so is suitable only for limited or intermittent or supplementary feeding, the statement "This product is intended for intermittent or supplemental feeding only."

(d) A product intended for use by, or under the supervision or direction of, a veterinarian must include a statement in accordance with subsection (c)(1) or (c)(3).

(e) A signed affidavit attesting that the product meets the requirements of subsection (a) or (b)(2) must be submitted to the state chemist upon request.

(f) If the nutrient content of a product does not meet those nutrient requirements established by an Association of American Feed Control Officials recognized nutrient profile, or if no requirement has been established by an Association of American Feed Control Officials recognized nutritional authority for the life stages of the intended species, the claimed nutritional adequacy or purpose of the product must be scientifically substantiated.

(g) The following are acceptable as the basis for a claim of nutritional adequacy as an Association of American Feed Control Officials recognized nutrient profile or nutritional authority:

(1) For dogs, the Association of American Feed Control Officials dog food nutrient profiles.

(2) For cats, the Association of American Feed Control Officials cat food nutrient profiles.

(3) For specialty pets, the nutrient recommendations approved by the Committee on Animal Nutrition of the



National Research Council of the National Academy of Sciences if the nutrient recommendation is recognized only for the specific specialty pet for which the profile is intended.

(4) As an Association of American Feed Control Officials recognized animal feeding protocol, the Association of American Feed Control Officials dog and cat food feeding protocols.

SECTION 17. IC 15-19-7-25.8 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 25.8. (a)** Except as provided in subsection (c), dog or cat food, including snacks or treats, labeled as complete and balanced for any or all life stages, as provided in section 25.7(c)(1) of this chapter, except those pet foods labeled in accordance with section 25.7(d) of this chapter, must list feeding directions on the product label.

(b) The feeding directions required under subsection (a) must meet all of the following:

- (1) Be consistent with the intended use indicated in the nutritional adequacy statement unless a limited use or more limited life stage designation is declared elsewhere, for example, adult formula.
- (2) Be expressed in common terms.
- (3) Appear prominently on the label.
- (4) State, at a minimum, "Feed (weight/unit of product) per (weight only) of dog (or cat).".
- (5) Specify the frequency of feeding.

(c) When a dog or cat food is intended for use by or under the supervision or direction of a veterinarian, the statement "Use only as directed by your veterinarian" may be used in lieu of feeding directions.

(d) Specialty pet food, including snacks or treats, labeled as complete and balanced for any or all life stages, as provided in section 25.7(a) of this chapter, must list feeding directions on the product label. These feeding directions are adequate to meet the nutrient requirements of the intended species of specialty pet as recommended by the Association of American Feed Control Officials recognized nutritional authority.

(e) The feeding directions required under subsection (d) must meet all of the following:

- (1) Be expressed in common terms.
- (2) Appear prominently on the label.
- (3) Specify the frequency of feeding.



SECTION 18. IC 15-19-7-25.9 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 25.9. (a) Except as required in section 28.1 of this chapter, the label of a dog or cat food may bear a statement of calorie content when the label meets all of the following:**

(1) The statement must be separate and distinct from the "Guaranteed Analysis" and shall appear under the heading "Calorie Content".

(2) The statement must be measured in terms of metabolizable energy (ME) on an as-fed basis and must be expressed as kilocalories per kilogram (kcal/kg) of product, and may also be expressed as kilocalories per familiar household measure, for example, cans, cups, and pounds.

(3) The calorie content is determined by one (1) of the following methods:

(A) By calculation using the following modified Atwater formula:

$$\text{ME(kcal/kg)} = 10[(3.5 \times \text{CP}) + (8.5 \times \text{CF}) + (3.5 \times \text{NFE})]$$

Where: ME = Metabolizable energy.

CP = % crude protein as-fed.

CF = % crude fat as-fed.

NFE = % nitrogen-free extract (carbohydrate) as-fed.

The percentages of CP and CF are the arithmetic averages from proximate analyses of at least four (4) production batches of the product, and the NFE is calculated as the difference between one hundred (100) and the sum of CP, CF, and the percentages of crude fiber, moisture, and ash (determined in the same manner as CP and CF).

(B) In accordance with a testing procedure established by Association of American Feed Control Officials.

(4) An affidavit must be provided upon request to the state chemist, substantiating that the calorie content was determined by either of the following:

(A) Subdivision (3)(A), in which case the results of all the analyses used in the calculation must accompany the affidavit.

(B) Subdivision (3)(B), in which case the summary data used in the determination of calorie content must accompany the affidavit.

(5) The calorie content statement must appear as one (1) of



the following:

(A) The claim on the label or other labeling must be followed parenthetically by the word "calculated" when the calorie content is determined in accordance with subdivision (3)(A).

(B) The value of calorie content stated on the label that is determined in accordance with subdivision (3)(B) must not exceed or understate the value determined in accordance with subdivision (3)(A) by more than fifteen percent (15%).

(b) Comparative claims:

(1) must not be false, misleading, or given undue emphasis; and

(2) must be based on the same methodology for the products compared.

SECTION 19. IC 15-19-7-26, AS AMENDED BY P.L.99-2012, SECTION 33, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26. A commercial feed, except a customer formula feed, must be accompanied by a label bearing the following information:

(1) The quantity statement:

(2) The product name and the brand name, if any, under which the commercial feed is distributed:

(3) The guaranteed analysis, expressed on an "as-is" basis, and stated in the terms that the state chemist, by rule, determines are required to advise the user of the composition of the feed or to support claims made in the labeling. In all cases the substances or elements must be determinable by laboratory methods such as the methods published by AOAC International:

(4) The common or usual name of each ingredient used in the manufacture of the commercial feed. However, the state chemist, by rule, may:

(A) permit the use of a collective term for a group of ingredients that perform a similar function; or

(B) exempt a commercial feed or group of commercial feeds from the requirement for an ingredient statement if the state chemist finds that such a statement is not required in the interest of consumers:

(5) The name and principal mailing address of the manufacturer or the person responsible for distributing the commercial feed:

(6) Adequate directions for use for:

(A) commercial feeds containing drugs; and



(B) other feeds that the state chemist requires by rule as necessary for their safe and effective use.

(7) Precautionary statements that the state chemist by rule determines are necessary for the safe and effective use of the commercial feed.

(1) The product name and the brand name, if any, under which the commercial feed is distributed as described in section 26.2(a)(1) of this chapter.

(2) If a drug is used in the commercial feed, a label as stipulated in section 26.2(a)(2) of this chapter.

(3) A purpose statement as stipulated in section 26.2(a)(3) of this chapter.

(4) The guaranteed analysis as stipulated in section 26.3 of this chapter.

(5) The feed ingredients as stipulated in section 26.2(a)(4) of this chapter.

(6) The directions for use and precautionary statements as stipulated in section 26.2(a)(5) of this chapter.

(7) The name and principal mailing address of the manufacturer or person responsible for distributing the feed as stipulated in section 26.2(a)(6) of this chapter.

(8) The quantity statement as stipulated in section 26.2(a)(7) of this chapter.

SECTION 20. IC 15-19-7-26.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 26.1. (a) When required by this chapter to list the name of each ingredient or collective term for the grouping of ingredients on a label, a commercial feed manufacturer shall use:**

(1) the ingredient name as defined in the Official Definitions of Feed Ingredients as published in the Official Publication of the Association of American Feed Control Officials;

(2) the common or usual name of the ingredient; or

(3) an ingredient name approved by the state chemist.

(b) The name of each ingredient must be shown in letters or type of the same size.

(c) A reference to quality or grade of an ingredient may not appear in the ingredient statement of a feed.

(d) The term "dehydrated" may precede the name of any product that has been artificially dried.

(e) A single ingredient product defined by the Association of American Feed Control Officials is not required to have an



ingredient statement.

(f) When the word "iodized" is used in connection with a feed ingredient, the feed ingredient shall contain not less than seven-thousandths percent (0.007%) iodine, uniformly distributed.

SECTION 21. IC 15-19-7-26.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.2. (a) A commercial feed manufacturer shall label commercial feed, other than customer formula feed, with the information prescribed as follows:

(1) The product name and brand name, if any, as follows:

(A) The brand or product name must be appropriate for the intended use of the feed and not misleading. If the name indicates the feed is made for a specific use, the character of the feed must conform. A commercial feed for a particular animal class must be suitable for that purpose.

(B) A commercial registered brand or commercial registered trade name is not permitted in guarantees or ingredient listings. A commercial registered brand or commercial registered trade name is only allowed in the product name of feeds produced by or for the firm holding the rights to such a name.

(C) Except as provided in subdivision (D), a commercial feed manufacturer may not:

(i) derive the name of a commercial feed from one (1) or more ingredients of a mixture to the exclusion of other ingredients; or

(ii) use one (1) ingredient to represent all the components of a mixture unless all components are included in the name.

(D) If an ingredient, or combination of ingredients, is intended to give the product a distinctive characteristic that matters to the purchaser, the commercial feed manufacturer must include the name of the ingredient or combination of ingredients in the product or brand name. However, the ingredient or combination of ingredients must be quantitatively guaranteed in the guaranteed analysis and the name must not be false or misleading.

(E) The word "protein" is not permitted in the product name of a feed that contains added nonprotein nitrogen.

(F) When a product or brand name includes a percentage value, that percentage value is understood to only signify the percentage of protein and the equivalent protein from



nonprotein nitrogen content, even if the word protein is not stated. A commercial feed manufacturer may include other percentage values as long as the values are properly described and follow good labeling practices. A commercial feed manufacturer shall not use digital numbers in a product name that could mislead or confuse a customer.

(G) Single ingredient feeds must have a product name in accordance with the designated definition of feed ingredients as recognized by the Association of American Feed Control Officials unless the director designates otherwise.

(H) A commercial feed manufacturer may only use the word "vitamin", a contraction of the word vitamin, or any word suggesting vitamin in the name of a feed which is:

- (i) represented to be a vitamin supplement; and
- (ii) labeled with the minimum content of each vitamin declared, as specified in section 26.6(c) of this chapter.

(I) A commercial feed manufacturer shall not use the term "mineralized" in the product or brand name except for "TRACE MINERALIZED SALT". When the name of a feed uses the term mineralized, the product must contain significant amounts of trace minerals which are recognized as essential for animal nutrition.

(J) A commercial feed manufacturer that uses the term "meat" or "meat byproducts" in a product or brand name shall designate the animal from which the meat or meat byproducts comes from, unless the meat or meat byproducts are made from:

- (i) cattle;
- (ii) swine;
- (iii) sheep; or
- (iv) goats.

(2) If a drug is used in commercial feed, the following requirements apply:

(A) The word "medicated" must appear directly following and below the product name in a type size, no smaller than one-half (1/2) the type size of the product name.

(B) A purpose statement as required in subdivision (3) of this section.

(C) The purpose of the medication (claim statement).

(D) An active ingredient statement listing the active drug



ingredients by their established name and the amounts in accordance with section 26.6(d) of this chapter.

(3) Requirements for the purpose statement are as follows:

(A) The purpose statement shall contain the specific species and animal class or classes for which the feed is intended as defined in section 26.3 of this chapter.

(B) The manufacturer of the commercial feed shall have flexibility in describing in more specific and common language the:

- (i) defined animal class;**
- (ii) species; and**
- (iii) commercial feed's purpose;**

while being consistent with the category of animal class defined in section 26.3 of this chapter.

(C) The purpose statement may be excluded from the label if the product name includes a description of the:

- (i) species; and**
- (ii) animal class or classes;**

for which the product is intended.

(D) For a premix intended for use in manufacturing animal feed, the purpose statement of the premix may exclude the animal class and species if the following criteria are met:

- (i) The manufacturer includes the statement "For Further Manufacture of Feed" on the label.**
- (ii) The nutrients contained in the premix are guaranteed and sufficient for formulation into various animal species feeds.**
- (iii) The end user provides the premix specifications.**

This subsection is applicable to commercial feeds regulated under section 26.3(k)(2)(J) of this chapter.

(E) The purpose statement of a single purpose ingredient blend, such as a blend of animal protein products, milk products, fat products, roughage products, or molasses products may exclude the animal class and species if the following criteria are met:

- (i) The manufacturer includes the statement "For Further Manufacture of Feed" on the label.**
- (ii) The nutrients contained in the single purpose nutrient blend are guaranteed and sufficient for formulation into various animal species feeds.**

This subsection is applicable to commercial feeds regulated under section 26.3(k)(2)(J) of this chapter.



- (F) The purpose statement of a product shall include a statement of enzyme functionality if enzymatic activity is represented in any manner.
- (4) The feed ingredients, collective terms for the grouping of feed ingredients, or appropriate statements as follows:
- (A) The name of each ingredient as defined in the Official Publication of the Association of American Feed Control Officials, common or usual name, or one approved by the director.
 - (B) Collective terms for the grouping of feed ingredients as defined in the Official Definitions of Feed Ingredients published in the Official Publication of the Association of American Feed Control Officials in lieu of the individual ingredients, provided:
 - (i) when a collective term for a group of ingredients is used on the label, individual ingredients within that group shall not be listed on the label; and
 - (ii) the manufacturer provides the state chemist, upon request, with a list of individual ingredients, within a defined group, that are or have been used at manufacturing facilities distributing in or into the state.
- (5) Directions for use and precautionary statements or reference to their location if the detailed feeding directions and precautionary statements required by sections 26.8 and 26.9 of this chapter appear elsewhere on the label.
- (6) The name and principal mailing address of the:
- (A) manufacturer; or
 - (B) person responsible for distributing the feed.
- The principal mailing address shall include the street address, city, state, and ZIP code. A manufacturer or person responsible for distributing the feed may omit the manufacturer or distributor's mailing address if the mailing address is shown in the current city directory or telephone directory.
- (7) Net weight or quantity statement.
- (b) The state chemist or the state chemist's agent may request labels or labeling under the following conditions:
- (1) When the commercial feed manufacturer is a new license applicant and the state chemist or the state chemist's agent has not observed the labeling practices of the commercial feed manufacturer.
 - (2) When the state chemist or the state chemist's agent finds



that the labels or labeling of a licensee is in violation of this chapter.

(3) When the state chemist or the state chemist's agent discovers analytical problems with a commercial feed manufacturer's commercial feed.

(4) When the state chemist or the state chemist's agent receives a consumer complaint.

SECTION 22. IC 15-19-7-26.3 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.3. (a) The guarantees for:

- (1) crude protein;
- (2) equivalent crude protein from nonprotein nitrogen;
- (3) amino acids;
- (4) crude fat;
- (5) crude fiber;
- (6) acid detergent fiber;
- (7) calcium;
- (8) phosphorus;
- (9) salt; and
- (10) sodium;

must be the sequence of nutritional guarantees when such a guarantee is stated. Other required and voluntary guarantees should follow in a general format such that the units of measure used to express guarantees are listed in a sequence that provides a consistent grouping of the units of measure as described in this section.

(b) The required animal classes and guarantees for swine formula feeds are as follows:

- (1) Animal classes as follows:
 - (A) Prestarter, two (2) to eleven (11) pounds.
 - (B) Starter, eleven (11) to forty-four (44) pounds.
 - (C) Grower, forty-four (44) to one hundred ten (110) pounds.
 - (D) Finisher, one hundred ten (110) to two hundred forty-two (242) pounds (market).
 - (E) Gilts, sows, and adult boars.
 - (F) Lactating gilts and sows.
- (2) Guaranteed analysis for swine complete feeds and supplements (all animal classes) as follows:
 - (A) Minimum percentage of crude protein.
 - (B) Minimum percentage of lysine.
 - (C) Minimum percentage of crude fat.



- (D) Maximum percentage of crude fiber.
 - (E) Minimum and maximum percentage of calcium.
 - (F) Minimum percentage of phosphorus.
 - (G) Minimum and maximum percentage of salt (if added).
 - (H) Minimum and maximum percentage of total sodium must be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
 - (I) Minimum selenium in parts per million.
 - (J) Minimum zinc in parts per million.
- (c) The required animal class and guarantees for formula poultry feeds (broilers, layers, and turkeys) are as follows:
- (1) Animal classes as follows:
 - (A) Layer, chickens that are grown to produce eggs for food (such as table eggs):
 - (i) starting or growing, from day of hatch to approximately ten (10) weeks of age;
 - (ii) finisher, from approximately ten (10) weeks of age to the time first egg is produced (approximately twenty (20) weeks of age);
 - (iii) laying, from the time the first egg is laid throughout the time of egg production; and
 - (iv) breeders, chickens that produce fertile eggs for hatch replacement layers to produce eggs for food, table eggs, from the time the first egg is laid throughout their productive cycle.
 - (B) Broilers, chickens that are grown for human food:
 - (i) starting/growing, from the day of hatch to approximately five (5) weeks of age;
 - (ii) finisher, from approximately five (5) weeks of age to market, (forty-two (42) to fifty-two (52) days); and
 - (iii) breeders, hybrid strains of chickens whose offspring are grown for human food (broilers) any age and either sex.
 - (C) Broilers, breeders, chickens whose offspring are grown for human food (broilers):
 - (i) starting or growing, from the day of hatch until approximately ten (10) weeks of age;
 - (ii) finishing, from approximately ten (10) weeks of age to the time the first egg is produced, approximately twenty (20) weeks of age; and
 - (iii) laying, fertile egg producing chickens (broilers/roasters) from the day of the first egg



throughout the time fertile eggs are produced.

(D) Turkeys:

- (i) starting or growing, turkeys that are grown for human food from the day of the hatch to approximately thirteen (13) weeks of age (females) and sixteen (16) weeks of age (males);
- (ii) finisher, turkeys that are grown for human food, females from approximately thirteen (13) weeks of age to approximately seventeen (17) weeks of age and males from sixteen (16) weeks of age to twenty (20) weeks of age (or desired market weight);
- (iii) laying, female turkeys that are producing eggs, from the time the first egg is produced throughout the time they are producing eggs; and
- (iv) breeder, turkeys that are grown to produce fertile eggs, from the day of hatch to the time the first eggs are produced (approximately thirty (30) weeks of age), both sexes.

(2) Guaranteed analysis for poultry complete feeds and supplements (all animal classes) as follows:

- (A) Minimum percentage of crude protein.
- (B) Minimum percentage of lysine.
- (C) Minimum percentage of methionine.
- (D) Minimum percentage of crude fat.
- (E) Maximum percentage of crude fiber.
- (F) Minimum and maximum percentage of calcium.
- (G) Minimum percentage of phosphorus.
- (H) Minimum and maximum percentage of salt (if added).

(d) The required animal classes and guarantees for beef cattle formula feeds are as follows:

(1) Animal classes as follows:

- (A) Calves (birth to weaning).
- (B) Cattle on pasture may be specific as to production stage, for example:
 - (i) shocker;
 - (ii) feeder;
 - (iii) replacement heifers;
 - (iv) brood cows; or
 - (v) bulls.
- (C) Feedlot cattle.

(2) Guaranteed analysis for beef complete feeds and supplements (all animal classes) as follows:



- (A) Minimum percentage of crude protein.
 - (B) Maximum percentage of equivalent crude protein from nonprotein nitrogen when added.
 - (C) Minimum percentage of crude fat.
 - (D) Maximum percentage of crude fiber.
 - (E) Minimum and maximum percentage of calcium.
 - (F) Minimum percentage of phosphorus.
 - (G) Minimum and maximum percentage of salt (if added).
 - (H) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
 - (I) Minimum percentage of potassium.
 - (J) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).
- (3) Guaranteed analysis for beef mineral feeds (if added) as follows:
- (A) Minimum and maximum percentage of calcium.
 - (B) Minimum percentage of phosphorus.
 - (C) Minimum and maximum percentage of salt.
 - (D) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
 - (E) Minimum percentage of magnesium.
 - (F) Minimum percentage of potassium.
 - (G) Minimum copper in parts per million.
 - (H) Minimum selenium in parts per million.
 - (I) Minimum zinc in parts per million.
 - (J) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound.
- (e) The required animal classes and required guarantees for dairy formula feeds are as follows:
- (1) Animal classes as follows:
- (A) Veal milk replacer, milk replacer to be fed for veal production.
 - (B) Herd milk replacer, milk replacer to be fed for herd replacement calves.
 - (C) Starter, approximately three (3) days to three (3) months.
 - (D) Growing heifers, bulls, and dairy beef as follows:
 - (i) Grower 1, three (3) months to twelve (12) months of age.
 - (ii) Grower 2, more than twelve (12) months of age.



- (iii) Lactating dairy cattle.
- (iv) Nonlactating dairy cattle.
- (2) Guaranteed analysis for veal and herd replacement milk replacer as follows:
 - (A) Minimum percentage crude protein.
 - (B) Minimum percentage crude fat.
 - (C) Maximum percentage of crude fiber.
 - (D) Minimum and maximum percentage calcium.
 - (E) Minimum percentage of phosphorus.
 - (F) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).
- (3) Guaranteed analysis for dairy cattle complete feeds and supplements as follows:
 - (A) Minimum percentage of crude protein.
 - (B) Maximum percentage of equivalent crude protein from nonprotein nitrogen when added.
 - (C) Minimum percentage of crude fat.
 - (D) Maximum percentage of crude fiber.
 - (E) Maximum percentage of acid detergent fiber.
 - (F) Minimum and maximum percentage of calcium.
 - (G) Minimum percentage of phosphorus.
 - (H) Minimum selenium in parts per million.
 - (I) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).
- (4) Required guaranteed analysis for dairy mixing and pasture mineral as follows:
 - (A) Minimum and maximum percentage of calcium.
 - (B) Minimum percentage of phosphorus.
 - (C) Minimum and maximum percentage of salt.
 - (D) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
 - (E) Minimum percentage of magnesium.
 - (F) Minimum percentage of potassium.
 - (G) Minimum selenium in parts per million.
 - (H) Minimum vitamin A, other than the precursors of vitamin A, in International Units per pound.
- (f) The required animal classes and guarantees for equine formula feeds are as follows:
 - (1) Animal classes as follows:
 - (A) Foal.
 - (B) Mare.



- (C) Breeding.
- (D) Maintenance.
- (2) Guaranteed analysis for equine complete feeds and supplements (all animal classes) as follows:
 - (A) Minimum percentage of crude protein.
 - (B) Minimum percentage of crude fat.
 - (C) Maximum percentage of crude fiber.
 - (D) Minimum and maximum percentage of calcium.
 - (E) Minimum percentage of phosphorus.
 - (F) Minimum copper in parts per million.
 - (G) Minimum selenium in parts per million.
 - (H) Minimum zinc in parts per million.
 - (I) Minimum vitamin A, other than the precursors of vitamin A, in International Units per pound (if added).
- (3) Guaranteed analysis for equine mineral feeds (all animal classes) as follows:
 - (A) Minimum and maximum percentage of calcium.
 - (B) Minimum percentage of phosphorus.
 - (C) Minimum and maximum percentage of salt (if added).
 - (D) Minimum and maximum percentage of sodium shall be guaranteed only when the total sodium exceeds that furnished by the maximum salt guarantee.
 - (E) Minimum copper in parts per million.
 - (F) Minimum selenium in parts per million.
 - (G) Minimum zinc in parts per million.
 - (H) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).
- (g) The required animal classes and guarantees for goat and sheep formula feeds are as follows:
 - (1) Animal classes as follows:
 - (A) Starter.
 - (B) Grower.
 - (C) Finisher.
 - (D) Breeder.
 - (E) Lactating.
 - (2) Guaranteed analysis for goat and sheep complete feeds and supplements (all animal classes) are as follows:
 - (A) Minimum percentage of crude protein.
 - (B) Maximum percentage of equivalent crude protein from nonprotein nitrogen when added.
 - (C) Minimum percentage of crude fat.
 - (D) Maximum percentage of crude fiber.



- (E) Minimum and maximum percentage of calcium.
- (F) Minimum percentage of phosphorus.
- (G) Minimum and maximum percentage of salt (if added).
- (H) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
- (I) Minimum and maximum copper in parts per million (if added, or if total copper exceeds twenty (20) parts per million).
- (J) Minimum selenium in parts per million.
- (K) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).
- (h) The required animal classes guarantees for duck and geese formula feeds are as follows:
 - (1) Animal classes as follows:
 - (A) Ducks as follows:
 - (i) Starter, zero (0) to three (3) weeks of age.
 - (ii) Grower, three (3) to six (6) weeks of age.
 - (iii) Finisher, six (6) weeks to market.
 - (iv) Breeder developer, eight (8) to nineteen (19) weeks of age.
 - (v) Breeder, twenty-two (22) weeks to end of lay.
 - (B) Geese as follows:
 - (i) Starter, zero (0) to four (4) weeks of age.
 - (ii) Grower, four (4) to eight (8) weeks of age.
 - (iii) Finisher, eight (8) weeks to market.
 - (iv) Breeder developer, ten (10) to twenty-two (22) weeks of age.
 - (v) Breeder, twenty-two (22) weeks to end of lay.
 - (2) Guaranteed analysis for duck and geese complete feeds and supplements (for all animal classes) as follows:
 - (A) Minimum percentage of crude protein.
 - (B) Minimum percentage of crude fat.
 - (C) Maximum percentage of crude fiber.
 - (D) Minimum and maximum percentage of calcium.
 - (E) Minimum percentage of phosphorus.
 - (F) Minimum and maximum percentage of salt (if added).
 - (G) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.
 - (i) The required animal species and guarantees for fish complete feeds and supplements are as follows:



- (1) Animal species shall be declared in lieu of animal class as follows:**
 - (A) Trout.**
 - (B) Catfish.**
 - (C) Species other than trout or catfish.**
- (2) Guaranteed analysis for all fish complete feeds and supplements as follows:**
 - (A) Minimum percentage of crude protein.**
 - (B) Minimum percentage of crude fat.**
 - (C) Maximum percentage of crude fiber.**
 - (D) Minimum percentage of phosphorus.**
- (j) The required animal class and guarantees for rabbit complete feeds and supplements are as follows:**
 - (1) Animal classes as follows:**
 - (A) Grower, four (4) to twelve (12) weeks of age.**
 - (B) Breeder, twelve (12) weeks of age and over.**
 - (2) Guaranteed analysis for rabbit complete feeds and supplements (all animal classes) as follows:**
 - (A) Minimum percentage of crude protein.**
 - (B) Minimum percentage of crude fat.**
 - (C) Minimum and maximum percentage of crude fiber (the maximum crude fiber shall not exceed the minimum by more than five (5) units).**
 - (D) Minimum and maximum percentage of calcium.**
 - (E) Minimum percentage of phosphorus.**
 - (F) Minimum and maximum percentage of salt (if added).**
 - (G) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.**
 - (H) Minimum vitamin A, other than precursors of vitamin A, in International Units per pound (if added).**
- (k) Except as provided in subsection (l), the required animal class and guarantees of grain mixtures with or without molasses and feeds, other than those described in subsections (b) through (j), must include the following items in the following order:**
 - (1) The animal class and species for which the product is intended.**
 - (2) The guaranteed analysis as follows:**
 - (A) Minimum percentage of crude protein.**
 - (B) Maximum or minimum percentage of equivalent crude protein from nonprotein nitrogen as required in section 26.6(e) of this chapter.**



- (C) Minimum percentage of crude fat.**
- (D) Maximum percentage of crude fiber.**
- (E) Minerals in formula feeds, to include in the following order:**
 - (i) Minimum and maximum percentages of calcium.**
 - (ii) Minimum percentage of phosphorus.**
 - (iii) Minimum and maximum percentage of salt (if added).**
 - (iv) Minimum and maximum percentage of total sodium shall be guaranteed only when total sodium exceeds that furnished by the maximum salt guarantee.**
 - (v) Other minerals.**
- (F) Minerals in feeds ingredients as specified by the official definitions of the Association of American Feed Control Officials.**
- (G) Vitamins in such terms as specified in section 26.6(c) of this chapter.**
- (H) Total sugars as invert on dried molasses products or products being sold primarily for their sugar content.**
- (I) Viable lactic acid producing microorganisms for use in silages in terms specified in section 26.6(g) of this chapter.**
- (J) A commercial feed, for example, vitamin/mineral premix or base mix, intended to provide a specialized nutritional source for use in the manufacture of other feeds, must state its intended purpose and guarantee those nutrients relevant to such stated purpose.**
- (I) Notwithstanding subsections (b) through (j), the following exemptions apply:**
 - (1) A mineral guarantee for feed, excluding those feeds manufactured as complete feeds and for feed supplements intended to be mixed with grain to produce a complete feed for swine, poultry, fish, and veal and herd milk replacers is not required when the feed or feed ingredient:**
 - (A) is not intended or represented or does not serve as a principal source of that mineral to the animal; or**
 - (B) is intended for:**
 - (i) nonfood producing animals; and**
 - (ii) contains less than six and five-tenths percent (6.5%) total mineral.**
 - (2) Guarantees for vitamins are not required when the commercial feed is neither formulated for nor represented in any manner as a vitamin supplement.**



(3) Guarantees for crude protein, crude fat, and crude fiber are not required when:

- (A) the commercial feed is intended for purposes other than to furnish these substances; or**
- (B) crude protein, crude fat, and crude fiber are of minor significance to the primary purpose of the product (such as drug premixes mineral or vitamin supplements, or molasses).**

(4) Guarantees for microorganisms are not required when the commercial feed is intended for a purpose other than:

- (A) to furnish these substances; or**
- (B) the microorganisms are of minor significance relating to the primary purpose of the product, and no specific label claims are made.**

(5) The indication for animal classes and species is not required on single ingredient products if the ingredient is not:

- (A) intended;**
- (B) represented; or**
- (C) defined;**

for a specific animal class or species.

(6) Mixtures of whole seeds intended to be fed to wild birds do not have to include supplying guarantees for minimum crude protein, minimum crude fat, and maximum crude fiber. Instead, a mixture of whole seeds may be labeled by including:

- (A) the weight percentage;**
- (B) the amount of seed by kind; and**
- (C) a weight designated as "other" that includes:**
 - (i) weed seed;**
 - (ii) other crop seed; and**
 - (iii) inert matter contained in the mixture to total one hundred percent (100%).**

The labeling on a mixture of whole seed feed that contains greater than two and five-tenths percent (2.5%) weed seed by weight, must include the statement "Note: This feed contains more than two and five-tenths percent (2.5%) weed seed by weight.", printed on the label.

SECTION 23. IC 15-19-7-26.6 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.6. (a) A commercial feed manufacturer shall print the guarantees for:

- (1) crude protein;**



- (2) equivalent crude protein from nonprotein nitrogen;
- (3) lysine;
- (4) methionine; and
- (5) other:
 - (A) amino acids;
 - (B) crude fat;
 - (C) crude fiber; or
 - (D) acid detergent fiber;

in terms of percentage.

(b) The following are mineral guarantees for commercial feed:

(1) When a commercial feed manufacturer provides guaranteed analysis for calcium, salt, and sodium guarantees, the guarantees must be stated and conform to the following:

(A) When the minimum is below two and five-tenths percent (2.5%), the maximum may not exceed the minimum by more than five-tenths (0.5) percentage point.

(B) When the minimum is two and five-tenths percent (2.5%) but less than five percent (5.0%), the maximum shall not exceed the minimum by more than one (1) percentage point.

(C) When the minimum is five percent (5.0%) or greater the maximum shall not exceed the minimum by more than twenty percent (20%) of the minimum and in no case shall the maximum exceed the minimum by more than five (5) percentage points.

(2) A commercial feed manufacturer shall state:

(A) guarantees for:

- (i) minimum and maximum total sodium and salt;
- (ii) minimum potassium;
- (iii) magnesium;
- (iv) sulfur;
- (v) phosphorus; and
- (vi) maximum fluoride;

in terms of percentage; and

(B) other minimum mineral guarantees in:

- (i) parts per million (ppm) when the concentration is less than ten thousand (10,000) ppm; and
- (ii) percentage when the concentration is ten thousand (10,000) ppm (one percent (1%)) or greater.

(3) A commercial feed manufacturer may state mineral guarantees (such as tablets, capsules, granules, or liquid) in milligrams per unit for a commercial feed label with a



quantity statement as long as the guarantees are consistent with the quantity statement and the directions for use.

(c) A commercial feed manufacturer shall list the guarantees for minimum vitamin content of commercial feed in the order specified and stated in milligrams per pound or in units consistent with those employed for the quantity statement unless otherwise specified as follows:

- (1) Vitamin A, other than precursors of vitamin A, in International Units per pound.
- (2) Vitamin D3, in products offered for poultry feeding, in International Chick Units per pound.
- (3) Vitamin D for other uses, International Units per pound.
- (4) Vitamin E, in International Units.
- (5) Concentrated oils and feed additive premixes containing vitamins A, D, and/or E may, at the option of the distributor, be stated in units per gram instead of units per pound.
- (6) Vitamin B12, in milligrams or micrograms per pound.
- (7) All other vitamin guarantees shall express the vitamin activity in milligrams per pound in terms of the following:
 - (A) Menadione.
 - (B) Riboflavin.
 - (C) D pantothenic acid.
 - (D) Thiamine.
 - (E) Niacin.
 - (F) Vitamin B6.
 - (G) Folic acid.
 - (H) Choline.
 - (I) Biotin.
 - (J) Inositol.
 - (K) P-amino benzoic acid.
 - (L) Ascorbic acid.
 - (M) Carotene.

(d) A commercial feed manufacturer shall state guarantees for drugs in terms of percent by weight, except for the following drug guarantees:

- (1) Antibiotics present as less than two thousand (2,000) grams per ton (total) of commercial feed shall be stated in grams per ton of commercial feed.
- (2) Antibiotics present at or more than two thousand (2,000) grams per ton (total) of commercial feed shall be stated in grams per pound of commercial feed.
- (3) Labels for commercial feeds containing growth promotion



or feed efficiency levels of antibiotics, which are fed continuously as the sole ration, are not required to make quantitative guarantees. However, if the federal Food Additive Regulations for certain antibiotics require quantitative guarantees for a specific antibiotic, the label must provide those guarantees regardless of the antibiotic's level or purpose.

(4) The term "milligrams per pound" may be used for drugs or antibiotics in those cases where a dosage is given in milligrams in the feeding direction.

(e) A commercial feed manufacturer shall label commercial feeds containing any added nonprotein nitrogen as follows:

(1) The following for ruminants:

(A) Complete feeds, supplements, and concentrates containing added nonprotein nitrogen and containing more than five percent (5%) protein from natural sources shall be guaranteed as crude protein, minimum, ____%. (This includes not more than ____% equivalent protein from nonprotein nitrogen.)

(B) Mixed feed concentrates and supplements containing less than five percent (5%) protein from natural sources shall be guaranteed as follows:

(i) Equivalent crude protein from nonprotein.

(ii) Nitrogen, minimum, ____%.

(C) Ingredient sources of nonprotein nitrogen (such as urea, diammonium phosphate, ammonium polyphosphate solution, ammoniated rice hulls, or other basic nonprotein nitrogen ingredients defined by the Association of American Feed Control Officials) shall be guaranteed as follows:

(i) Nitrogen, minimum, ____% equivalent crude.

(ii) Protein from nonprotein nitrogen, minimum, ____%.

(2) The following for nonruminants:

(A) Complete feeds, supplements, and concentrates containing crude protein from all forms of nonprotein nitrogen, added as such, shall be labeled as crude protein, minimum ____%. (This includes not more than ____% equivalent crude protein that is not nutritionally available to (species of animal for which feed is intended).)

(B) Premixes, concentrates, or supplements intended for nonruminants containing more than one and twenty-five hundredths percent (1.25%) equivalent crude protein from



all forms of nonprotein nitrogen, added as such, must contain adequate directions for use and a prominent statement, "WARNING: This feed must be used only in accordance with directions furnished on the label."

(f) A commercial feed manufacturer shall label mineral phosphatic materials for feeding purposes with the guarantee for:

- (1) minimum and maximum percentage of calcium (when present);
- (2) the minimum percentage of phosphorus; and
- (3) the maximum percentage of fluorine.

(g) A commercial feed manufacturer shall state the guarantees for microorganisms in colony forming units per:

- (1) gram (CFU/g) when directions are for using the product in grams; or
- (2) pound (CFU/lb) when directions are for using the product in pounds.

A parenthetical statement following the guarantee shall list each species in order of predominance.

(h) A commercial feed manufacturer shall state guarantees for enzymes in units of enzymatic activity per unit weight or volume, consistent with label directions. A commercial feed manufacturer shall specify the source organism for each type of enzymatic activity (for examples protease (bacillus subtilis) five and five-tenths (5.5) milligrams amino acids liberated/min./milligram). If two (2) or more source organisms have the same type of activity, the commercial feed manufacturer shall list the organism in order of predominance based on the amount of enzymatic activity provided.

SECTION 24. IC 15-19-7-26.7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.7. (a) This section does not apply to customer-formula feed.

(b) A commercial feed manufacturer shall ensure that the nutritional content of a commercial feed is accurately represented in its label. The commercial animal feed's:

- (1) ingredients;
- (2) label; and
- (3) intended use;

must accurately reflect the intended purpose of the product.

(c) If the director has reasonable cause to believe a commercial feed is not nutritionally suitable, then the state chemist may request the commercial feed manufacturer:

- (1) to submit an affidavit of suitability certifying the



nutritional adequacy of the commercial feed; or

(2) to certify the nutritional adequacy of the commercial feed by an alternate procedure approved by the director.

A commercial feed manufacturer's assertions in an affidavit of suitability or alternate procedure must be based on valid scientific evidence. A commercial feed manufacturer's submission of a completed affidavit of suitability shall serve as substantiation of the suitability of the feed.

(d) If an affidavit of suitability, or alternative procedure acceptable to the director is not submitted by the commercial feed manufacturer or labeler within thirty (30) days of written notification, the director may deem the feed adulterated under section 29 of this chapter and order the feed removed from the marketplace.

(e) The affidavit of suitability shall contain the following information:

(1) The commercial feed manufacturer's name.

(2) The commercial feed's product name.

(3) The name and title of the commercial feed manufacturer submitting the document.

(4) A statement that the commercial feed manufacturer has knowledge of the nutritional content of the feed and based on valid scientific evidence the feed is nutritionally adequate for its intended purpose.

(5) The date of submission.

(6) The signature of the owner or operator of the commercial feed manufacturer notarized by a certified notary public.

SECTION 25. IC 15-19-7-26.8 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.8. (a) As used in this section, "feed" refers to:

(1) commercial feed (as defined in IC 15-19-7-2); and

(2) customer formula feed (as defined in IC 15-19-7-3).

(b) A commercial feed manufacturer shall do the following:

(1) Ensure all directions for use and precautionary statements on a feed label containing additives (including drugs, special purpose additives, or nonnutritive additives) are adequate to enable users with no special knowledge to use the feed for the feed's intended purpose.

(2) Include all information prescribed by all applicable regulations under the federal Food, Drug, and Cosmetic Act.

(c) Adequate directions for use and precautionary statements



are required for feeds containing nonprotein nitrogen as specified in section 26.9 of this chapter.

(d) Adequate directions for use and precautionary statements necessary for safe and effective use are required on commercial feeds distributed to supply particular dietary needs or for supplementing or fortifying the usual diet or ration with any vitamin, mineral, or other dietary nutrient or compound.

SECTION 26. IC 15-19-7-26.9 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26.9. (a) Urea and other nonprotein nitrogen products defined in the Official Publication of the Association of American Feed Control Officials are acceptable ingredients only in commercial feeds for ruminant animals as a source of equivalent crude protein.

(b) If a commercial feed contains more than eight and seventy-five hundredths percent (8.75%) of its equivalent crude protein from added nonprotein nitrogen, or if added nonprotein nitrogen provides more than one-third (1/3) of the total crude protein, the label must include adequate directions for safe use and a precautionary statement that includes the following statement "CAUTION: USE AS DIRECTED." A commercial feed manufacturer shall include the directions for safe use and a precautionary statement in a font large enough on the label so the directions for safe use and a precautionary statement can be read and understood by ordinary persons under customary conditions of purchase and use.

(c) Nonprotein nitrogen defined in the Official Publication of the Association of American Feed Control Officials, when so indicated, is an acceptable ingredient in commercial feeds distributed as feed for nonruminant animals as a source of nutrients other than equivalent crude protein. The maximum equivalent crude protein from nonprotein nitrogen sources when used in nonruminant rations may not exceed one and twenty-five hundredths percent (1.25%) of the total daily ration.

(d) On medicated commercial feed labels that include the adequate feeding directions and warning statements, the presence of added nonprotein nitrogen does not require a commercial feed manufacturer to duplicate the:

- (1) feeding directions; or
- (2) precautionary statements;

as long as those statements include sufficient information to ensure the safe and effective use of this product due to the presence of



nonprotein nitrogen.

SECTION 27. IC 15-19-7-27.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 27.2. (a) A commercial feed manufacturer that produces commercial feed that contains additives, such as drugs, other special purpose additives, or nonnutritive additives, may be required to submit evidence to prove the safety and efficacy of the commercial feed when used according to the directions furnished on the label.**

(b) The following are satisfactory evidence of safety and efficacy of a commercial feed:

(1) When a commercial feed contains additives that comply with the applicable requirements of 21 CFR, or the additives are:

- (A) prior-sanctioned;**
- (B) informally review-sanctioned; or**
- (C) generally recognized as safe for that use.**

(2) When a commercial feed is itself a drug as defined in section 6 of this chapter and is:

- (A) generally recognized as safe and effective for the labeled use; or**
- (B) marketed subject to an application approved by the Food and Drug Administration under 21 U.S.C. 360(b).**

(3) When one (1) of the purposes for feeding a commercial feed is to impart immunity (that is to act through some immunological process) the constituents imparting immunity have been approved for that purpose through the federal Virus, Serum, and Toxin Act of 1913, as amended.

(4) When the commercial feed is a direct fed microbial product, including the following:

- (A) The product meets the particular fermentation product definition.**
- (B) The microbial content statement, as expressed in the labeling, is limited to the statement, "Contains a source of live (viable) naturally occurring microorganisms.". This statement shall appear on the label.**
- (C) The source is stated with a corresponding guarantee expressed in accordance with section 26.6 of this chapter.**

(5) When the commercial feed is an enzyme product, including the following:

- (A) The product meets the particular enzyme definition defined by the Association of American Feed Control**



Officials.

(B) The enzyme is stated with a corresponding guarantee expressed in accordance with section 26.6 of this chapter.

SECTION 28. IC 15-19-7-27.4 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 27.4. (a) A commercial feed manufacturer shall grind and treat:**

- (1) screenings; or**
- (2) grain and seed byproducts;**

containing weed seeds to destroy the viability of weed seeds.

(b) The commercial feed manufacturer shall ensure that the finished product contains no:

- (1) viable prohibited noxious weed seeds;**
- (2) more than fifty (50) viable restricted noxious weed seeds per pound; and**
- (3) more than one hundred (100) other viable weed seeds per pound.**

SECTION 29. IC 15-19-7-27.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 27.5. (a) The words "100%", or "All", or words of similar designation must not be used in the brand or product name of a pet food or specialty pet food if the product contains more than one (1) ingredient, not including water sufficient for processing, decharacterizing agents, or trace amounts of preservatives and condiments.**

(b) An ingredient or a combination of ingredients may form a part of the product name of a pet food or specialty pet food as follows:

- (1) When the ingredients derived from animals, poultry, or fish constitute at least ninety-five percent (95%) of the total weight of the product. Water sufficient for processing may be excluded when calculating the percentage; however, the ingredient must constitute at least seventy percent (70%) of the total product weight.**
- (2) When any ingredient constitutes at least twenty-five percent (25%) of the weight of the product, the following must be met:**
 - (A) Water sufficient for processing may be excluded when calculating the percentage; however, the ingredients must constitute at least ten percent (10%) of the total product weight.**
 - (B) A descriptor is used with the ingredient name. This**



descriptor must imply other ingredients are included in the product formula. Examples of descriptors include the following:

- (i) Dinner.
- (ii) Platter.
- (iii) Entree.
- (iv) Formula.
- (v) Recipe.

(C) The descriptor must be in the same size, style, and color print as the ingredient name.

(3) When a combination of ingredients that are included in the product name in accordance with this subsection meets all of the following:

(A) Each ingredient constitutes at least three percent (3%) of the product weight, excluding water sufficient for processing.

(B) The names of the ingredients appear in the order of their respective predominance by weight in the product.

(C) All the ingredient names appear on the label in the same size, style, and color print.

(c) When the name of any ingredient appears in the product name of a pet food or elsewhere on the product label and includes a descriptor, such as "with" or similar designation, the named ingredients must each constitute at least three percent (3%) of the product weight exclusive of water for processing. If the names of more than one (1) ingredient are shown, each ingredient must appear in the ingredient's respective order of predominance by weight in the product. The three percent (3%) minimum level must not apply to claims for nutrients, such as vitamins, minerals, and fatty acids, as well as condiments. The word "with", or similar designation, and named ingredients must be in the same size, style, color, and case print and be of no greater size than:

Panel Size	Max "with claim" Type Size
< 5 sq. in.	1/8"
5–25 sq. in.	1/4"
25–100 sq. in.	3/8"
100–400 sq. in.	1/2"
400 sq. in. +	1"

(d) A flavor designation may be included as part of the product name or elsewhere on the label of a pet food or specialty pet food when the flavor designation meets all of the following:

(1) The flavor designation:



- (A) conforms to the name of the ingredient as listed in the ingredient statement; or
- (B) is identified by the source of the flavor in the ingredient statement.
- (2) The word "flavor" is printed in the same size type and with an equal degree of conspicuousness as the name of the flavor designation.
- (3) Substantiation of the flavor designation, the flavor claim, or the ingredient source is provided upon request.
- (e) The product name of the pet food or specialty pet food must not be derived from one (1) or more ingredients unless:
 - (1) all ingredients are included in the name, except as specified by subsection (b) or (c); or
 - (2) at least one (1) of the following are satisfied:
 - (A) The ingredient or combination of ingredients is present in sufficient quantity to impart a distinctive characteristic to the product or is present in amounts that have a material bearing on the price of the product or on acceptance of the product by the purchaser of the product.
 - (B) Use of the ingredient or combination of ingredients in the product name does not constitute a representation that the ingredient or combination of ingredients is present to the exclusion of other ingredients.
- (f) Contractions or coined names referring to an ingredient must not be used in the brand name of a pet food or specialty pet food unless the use complies with subsection (b), (c), or (d).

SECTION 30. IC 15-19-7-28.1 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 28.1. (a) "Light" requirements for calorie terms are as follows:

- (1) A dog food product that bears on its label the terms "light", "lite", "low calorie", or words of similar designation must:
 - (A) contain no more than three thousand one hundred (3,100) kcal ME/kg for products containing less than twenty percent (20%) moisture, no more than two thousand five hundred (2,500) kcal ME/kg for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than nine hundred (900) kcal ME/kg for products containing sixty-five percent (65%) or more moisture;
 - (B) include on the label a calorie content statement:



- (i) that complies with the format provided in section 25.9 of this chapter; and
 - (ii) that states no more than three thousand one hundred (3,100) kcal ME/kg for products containing less than twenty percent (20%) moisture, no more than two thousand five hundred (2,500) kcal ME/kg for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than nine hundred (900) kcal ME/kg for products containing sixty-five percent (65%) or more moisture; and
 - (C) include on the label feeding directions that reflect a reduction in calorie intake consistent with the intended use.
- (2) A cat food product that bears on its label the terms "light", "lite", "low calorie", or words of similar designation must:
- (A) contain no more than three thousand two hundred fifty (3,250) kcal ME/kg for products containing less than twenty percent (20%) moisture, no more than two thousand six hundred fifty (2,650) kcal ME/kg for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than nine hundred fifty (950) kcal ME/kg for products containing sixty-five percent (65%) or more moisture;
 - (B) include on the label a calorie content statement:
 - (i) that complies with the format provided in section 25.9 of this chapter; and
 - (ii) that states no more than three thousand two hundred fifty (3,250) kcal ME/kg for products containing less than twenty percent (20%) moisture, no more than two thousand six hundred fifty (2,650) kcal ME/kg for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than nine hundred fifty (950) kcal ME/kg for products containing sixty-five percent (65%) or more moisture; and
 - (C) include on the label feeding directions which reflect a reduction in calorie intake consistent with the intended use.
- (b) "Less" or "reduced calories" requirements for a dog or cat food product that bears on its label a claim of "less calories", "reduced calories", or words of similar designation, must include the following on the label:
- (1) The name of the product of comparison and the



percentage of calorie reduction (expressed on an equal weight basis) explicitly stated and juxtaposed with the largest or most prominent use of the claim on each panel of the label where the term appears.

(2) The comparative statement printed in type of the same color and style and at least half the type size used in the claim.

(3) A calorie content statement that complies with the format provided in section 25.9 of this chapter.

(4) Feeding directions that reflect a reduction in calories compared to feeding directions for the product of comparison.

(5) A comparison between products in different categories of moisture content, that is, less than twenty percent (20%), twenty percent (20%) or more but less than sixty-five percent (65%), sixty-five percent (65%) or more, is misleading.

(c) "Lean" requirements for fat terms are as follows:

(1) A dog food product that bears on its label the terms "lean", "low fat", or words of similar designation must:

(A) contain no more than nine percent (9%) crude fat for products containing less than twenty percent (20%) moisture, no more than seven percent (7%) crude fat for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than four percent (4%) crude fat for products containing sixty-five percent (65%) or more moisture; and

(B) include on the product label in the guaranteed analysis a maximum crude fat guarantee:

(i) immediately following the minimum crude fat guarantee in addition to the mandatory guaranteed analysis information as specified in section 29.5(a)(1) of this chapter; and

(ii) that is no more than nine percent (9%) crude fat for products containing less than twenty percent (20%) moisture, no more than seven percent (7%) crude fat for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than four percent (4%) crude fat for products containing sixty-five percent (65%) or more moisture.

(2) A cat food product that bears on its label the terms "lean", "low fat", or words of similar designation shall:

(A) contain a maximum percentage of crude fat which is no more than ten percent (10%) crude fat for products containing less than twenty percent (20%) moisture, no



more than eight percent (8%) crude fat for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than five percent (5%) crude fat for products containing sixty-five percent (65%) or more moisture; and

(B) include on the product label in the guaranteed analysis a maximum crude fat guarantee:

(i) immediately following the minimum crude fat guarantee in addition to the mandatory guaranteed analysis information as specified in section 29.5(a)(1) of this chapter; and

(ii) that is no more than ten percent (10%) crude fat for products containing less than twenty percent (20%) moisture, no more than eight percent (8%) crude fat for products containing twenty percent (20%) or more but less than sixty-five percent (65%) moisture, and no more than five percent (5%) crude fat for products containing sixty-five percent (65%) or more moisture.

(d) "Less" or "reduced fat" requirements for fat terms for a dog or cat food product that bears on its label a claim of "less fat", "reduced fat", or words of similar designation, must include the following on the label:

(1) The name of the product of comparison and the percentage of fat reduction (expressed on an equal weight basis) explicitly stated and juxtaposed with the largest or most prominent use of the claim on each panel of the label on where the term appears.

(2) The comparative statement printed in type of the same color and style and at least half the type size used in the claim.

(3) A maximum crude fat guarantee in the guaranteed analysis immediately following the minimum crude fat guarantee in addition to the mandatory guaranteed analysis information as specified in section 29.5(a)(1) of this chapter.

(e) A comparison on the label between products in different categories of moisture content, that is, less than twenty percent (20%), twenty percent (20%) or more but less than sixty-five percent (65%), sixty-five percent (65%) or more, is misleading.

SECTION 31. IC 15-19-7-28.2 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 28.2. (a) The label of a pet food or specialty pet food must specify the name and address of the manufacturer or distributor. The statement of the place of business



must include the street address, city, state, and ZIP code. However, the street address may be omitted if the street address is shown in a current city directory or telephone directory for the city listed on the label.

(b) When a person manufactures or distributes a pet food or specialty pet food in a place other than the principal place of business, the label may state the principal place of business in lieu of the actual place where each package of the pet food or specialty pet food was manufactured or package or from where each package is to be distributed.

SECTION 32. IC 15-19-7-29, AS AMENDED BY P.L.13-2013, SECTION 51, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 29. A commercial feed is considered adulterated if it meets any of the following conditions:

(1) It bears or contains a poisonous or deleterious substance that may render it injurious to health. However, if the substance is not an added substance, the commercial feed is not considered to be adulterated under this subdivision if the quantity of the substance in the commercial feed does not ordinarily render it injurious to health.

(2) It contains an added poisonous, added deleterious, or added nonnutritive substance that is unsafe within the meaning of Section 406 of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 346) other than one that is:

(A) a pesticide chemical in or on a raw agricultural commodity; or

(B) a food additive.

(3) It is, or it contains, a food additive that is unsafe within the meaning of Section 409 of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 348).

(4) It is a raw agricultural commodity and it contains a pesticide chemical that is unsafe within the meaning of Section 408(a) of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a(a)). However, if a pesticide chemical has been used in or on a raw agricultural commodity in conformity with an exemption granted or a tolerance prescribed under Section 408 of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a) and the raw agricultural commodity has been subjected to processing, such as canning, cooking, freezing, dehydrating, or milling, the residue of the pesticide chemical remaining in or on the processed feed is not considered unsafe if:

(A) the residue in or on the raw agricultural commodity has



been removed to the extent possible in good manufacturing practice;

(B) the concentration of the residue in the processed feed is not greater than the tolerance prescribed for the raw agricultural commodity; and

(C) the feeding of the processed feed will not result, or is not likely to result, in a pesticide residue in the edible product of the animal that is unsafe within the meaning of Section 408(a) of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 346a(a)).

(5) It is, or it contains, a color additive that is unsafe within the meaning of Section 721 of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 379e).

(6) It is, or it contains, an animal drug that is unsafe within the meaning of Section 512 of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 360b).

(7) If any valuable constituent has been in whole or in part omitted or abstracted from the commercial feed or any less valuable substance has been substituted for a valuable constituent.

(8) Its composition or quality falls below or differs from that which it is purported or is represented to possess by its labeling.

(9) It contains a drug and the methods used in or the facilities or controls used for its manufacture, processing, or packaging do not conform to current good manufacturing practice rules. ~~adopted by the state chemist to ensure that the drug:~~

~~(A) meets the requirement of this chapter as to safety; and~~

~~(B) has the identity and strength, and meets the quality and purity characteristics that it is represented to possess.~~

~~In adopting these rules, the state chemist shall adopt the current good manufacturing practice regulations for Type A medicated articles and Type B and Type C medicated feeds established under authority of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 301 et seq.); unless the state chemist determines that they are not appropriate to the conditions that exist in Indiana.~~

(10) It contains viable weed seeds in amounts exceeding the limits the state chemist establishes by rule.

(11) It consists in whole or in part of any filthy, putrid, or decomposed substance, or it is otherwise unfit for feed.

(12) It has been prepared, packed, or held under unsanitary conditions under which:

(A) it may become contaminated with filth; or

(B) it may have become injurious to health.



(13) It is, in whole or in part, the product of a diseased animal or of an animal that has died by means other than slaughter.

(14) It is unsafe within the meaning of Section 402(a)(1) or 402(a)(2) of the federal Food, Drug, and Cosmetic Act (21 U.S.C. 342(a)(1) and 21 U.S.C. 342(a)(2)).

(15) Its container is composed, in whole or in part, of any poisonous or deleterious substance that may render the contents injurious to health.

(16) It has been intentionally subjected to radiation, unless the use of radiation was in conformity with a regulation or exemption in effect under Section 409 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 348).

SECTION 33. IC 15-19-7-29.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 29.5. (a) The guaranteed analysis must be listed in the following order and format unless otherwise specified in this chapter:**

(1) A pet food or specialty pet food label must list the following required guarantees:

(A) Minimum percentage of crude protein.

(B) Minimum percentage of crude fat.

(C) Maximum percentage of crude fat, if required by section 28.1 of this chapter.

(D) Maximum percentage of crude fiber.

(E) Maximum percentage of moisture.

(F) Additional guarantees must follow moisture.

(2) When ash is listed in the guaranteed analysis on a pet food or specialty pet food label, it must be guaranteed as a maximum percentage and must immediately follow moisture.

(3) A dog or cat food label must list other required or voluntary guarantees in the same order and units of the nutrients in the Association of American Feed Control Officials dog (or cat) food nutrient profiles. Guarantees for substances not listed in the Association of American Feed Control Officials dog (or cat) food nutrient profiles, or not otherwise provided for in this chapter, must immediately follow the listing of the recognized nutrients and must be accompanied by an asterisk referring to the disclaimer "Not recognized as an essential nutrient by the Association of American Feed Control Officials dog (or cat) food nutrient profiles." The disclaimer must appear immediately after the last guarantee in the same size type as the guarantees.



(4) A specialty pet food label must list other required or voluntary guarantees as required by section 26.3(k) of this chapter.

(b) The sliding scale method of expressing a guaranteed analysis on a pet food or specialty pet food label (for example, "Minimum crude protein 15-18%") is prohibited.

(c) The label of a pet food or a specialty pet food that is formulated as and represented to be a mineral supplement must include minimum guarantees for all minerals from sources declared in the ingredient statement:

(1) established by an Association of American Feed Control Officials recognized nutrient profile, expressed as the element in units specified in the nutrient profile; or

(2) expressed as the element in units specified in section 26.6(b) of this chapter when no species specific nutrient profile has been recognized by Association of American Feed Control Officials.

Mineral guarantees required by this subsection may be expressed in milligrams per unit, for example, tablets, capsules, granules, or liquids, consistent with those employed in the quantity statement and directions for use, and a weight equivalent, for example, one (1) fluid ounce equals twenty-eight (28) grams, for liquid products.

(d) The label of a pet food or a specialty pet food that is formulated as and represented to be a vitamin supplement must include minimum guarantees for all vitamins from sources declared in the ingredient statement:

(1) established by an Association of American Feed Control Officials recognized nutrient profile, expressed in units specified in the nutrient profile; or

(2) expressed in units specified in section 26.6(b) of this chapter when no species specific nutrient profile has been recognized by Association of American Feed Control Officials.

Vitamin guarantees required by this subsection may be expressed in approved units, for example, IU, mg, g, per unit, tablets, capsules, granules, or liquids, consistent with those employed in the quantity statement and directions for use, and a weight equivalent, for example, one (1) fluid ounce equals twenty-eight (28) grams, for liquid products.

(e) When the label of a pet food or specialty pet food includes a comparison of the nutrient content of the food with levels established by an Association of American Feed Control Officials



recognized nutrient profile, such as a table of comparison, a percentage, or any other designation referring to an individual nutrient or all of the nutrient levels, the following apply:

- (1) The product must meet the Association of American Feed Control Officials recognized nutrient profile.
- (2) The statement of comparison must be preceded by a statement that the product meets the Association of American Feed Control Officials recognized profile. However, the statement that the product meets the Association of American Feed Control Officials recognized nutrient profile is not required if the nutritional adequacy statement as per section 25.7(a)(1) or 25.7(b)(2)(A) of this chapter appears elsewhere on the product label.
- (3) The statement of comparison of the nutrient content constitute a guarantee but need not be repeated in the guaranteed analysis.
- (4) The statement of comparison may appear on the label separate and apart from the guaranteed analysis.
- (f) The maximum moisture declared on a pet food or specialty pet food label must not exceed seventy-eight percent (78%) or the natural moisture content of the ingredients, whichever is higher. However, pet food and specialty pet food, such as those consisting principally of stew, gravy, sauce, broth, aspic, juice, or a milk replacer, and that are so labeled, may contain moisture in excess of seventy-eight percent (78%).
- (g) Guarantees for crude protein, crude fat, and crude fiber are not required when the pet food or specialty pet food is intended for purposes other than to furnish these substances or they are of minor significance relative to the primary purpose of the product, such as a mineral or vitamin supplement.
- (h) Guarantees for microorganisms and enzymes must be stated in the format as stipulated in sections 26.6(g) and 26.6(h) of this chapter.

SECTION 34. IC 15-19-7-47 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 47. (a) As used in this section, "model bill" refers to the Model Regulations for Pet Food and Specialty Pet Food Under the Model Bill by the Association of American Feed Control Officials (AAFCO) as published in the 2026 Official Publication of AAFCO.

(b) Notwithstanding any law in this chapter concerning the labeling review for pet food or specialty pet food, the state chemist



shall review a label for a pet food or specialty pet food using the requirements of the model bill if the following conditions are met:

- (1) The manufacturer or distributor specifically requests the state chemist to apply the review standards adopted in the model bill.
- (2) The manufacturer or distributor meets the requirements of:
 - (A) the model bill; and
 - (B) the federal Food and Drug Administration requirements for labeling and manufacturing animal food.
- (3) The manufacturer or distributor pays all fees required under this chapter.
- (4) The manufacturer does not commit a prohibited act under section 40 of this chapter.

(c) The state chemist may use the Association of American Feed Control Officials (AAFCO) Pet Food Regulations Label Review Checklist (as published in the current Official Publication of AAFCO) to determine if a manufacturer or distributor has complied with the requirements of this section.

SECTION 35. [EFFECTIVE JULY 1, 2026] (a) The following rules are void:

- (1) 355 IAC 6-1.
- (2) 355 IAC 6-2.

(b) The publisher of the Indiana Administrative Code and the Indiana Register shall remove the rules in subsection (a) from the Indiana Administrative Code.

(c) This SECTION expires July 1, 2027.



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

SEA 249

